

Intellectual Property is a kind of property that is created by the human mind using his or her intellectual capability. Intellectual property is a form of intangible property, such as: 1) Copyright, 2) Patent, 3) Trademark, 4) Industrial Design, 5) Traditional Knowledge, 6) Trade Secret, 7) Geographical Indication, 8) Semiconductor Integrated Circuit Layout Design, 9) Developed Plant Varieties

Intellectual property rights (IPR) are rights of owner of IP.

Intellectual Property Rights are legal rights that are granted to the creator or owner of IP for a limited period of time and is subject to certain conditions.

IPR is an important topic for any research and innovation-oriented organization as well as academic and research institutes.

- It is important to protect IP.
- It is important to prevent infringement of third party's IP.
- Awareness of IPR gives direction to the research.
- IPR may be seen as revenue generation tool.
- Adds value and branding of an institute.
- Encourages and promotes entrepreneurship.

Types of Intellectual Property Rights (IPR)

Intellectual Property Rights can be broadly divided into two categories:

- 1) Copyrights
- 2) Industrial Property

Copyright

Copyright is a set of rights given by the law to the works of authorship. It is the right given to the creators of literary, dramatic, musical and artistic works and producers of cinematographic films.

Historically, copyright law British Statute of Anne 1709, was enacted for the printers of books. It was applied to the copying of books but later it applied to translations and derivative works. Presently, copyright covers a wide range of works, including maps, performances, paintings, photographs, sound recordings, motion pictures and computer programs.

The Indian Copyright Act, 1957 provides protection to following categories of works:

- 1) **Literary work:** books, articles, computer program, tables and compilations including databases
- 2) **Dramatic work:** drama, recitation, scenic arrangement & work capable of being performed by action
- 3) **Musical work:** Song, tune, beats
- 4) **Artistic work:** includes painting, sculpture, drawing (including diagram, map, chart), engraving, photograph, work of architecture; and any other work of artistic craftsmanship.
- 5) **Cinematographic work:** work of visual recording
- 6) **Sound recording:** means a recording of sounds from which sounds may be produced

Term of protection

Literary, dramatic, musical and artistic works is 60-year from the year following the death of author.

For other works- 60-year from the date of publication.

Cinematograph films, sound recordings, photographs, posthumous publications, anonymous and pseudonymous publications, works of government and works of international organizations, the

Authorship

Person who creates the work is the author of that work. Author has copyright.

If a work is "*made for hire*," employer, and not employee, is the author. An employer may be a firm, an organization, or an individual.

If an author has created the work while in his/her capacity of employee, the employer and not the employee is considered to be the author and copyright holder. The work done after office hours without directions of employer is not considered work for hire and author is owner of the work.

Patent

"The patent system added the fuel of interest to the fire of genius." - Abraham Lincoln.

Patent originates from the Latin word *patere*, which means "*to lay open*". This indicates complete disclosure of the invention to the government is integral part of the process of patenting.

Patent is granted for invention to its creator.

Criteria of patentability

The term invention is typically defined as 'A new product or process involving an inventive step and capable of industrial application'. An invention to be patentable, it must satisfy the criteria of patentability which is.

- a) Novelty
- b) *Inventive Step or Non-obviousness, and*
- c) *Industrial Application*

Grant of Patent gives certain rights to its holder by a state (national government) for a certain period, subject to certain conditions.

Aim of patent system

The main aim of patent system is to:

- Encourage industrial development;
- Encourage complete disclosure of invention;
- Prevent duplication of research;
- Focus on commercial relevance of the invention;
- Prevent exploitation of researchers by giving them recognition as inventor and providing them royalty upon commercialization;
- Generate revenue when the invention gets commercialized; and
- Provide a source of technical information.

Criteria of patentability

Well, the term invention is typically defined as '*A new product or process involving an inventive step and capable of industrial application*'. This means that for an invention to be patentable, it must satisfy the criteria of patentability which is: *a) Novelty, b) Inventive Step or Non-obviousness, and c) Industrial Application*

Industrial application does not mean it has to be related to manufacturing or machinery. It means, to be patentable, the invention must have a practical use and implementable in a real-world setting. This ensures that the invention is not just a theoretical idea but has potential commercial or practical value.

In India, the first patent statute was passed in 1857, but a proper Patents Act, was passed in 1970.

Indian Patent Office is administered under Ministry of Commerce and Industry with Head Offices at Kolkata and branch offices in Chennai, Mumbai and Delhi.

Trademark

Trademark is one more form of IPR. It can be defined as a distinctive sign, which identifies certain goods or services as those produced or provided by a specific person or enterprise. Trademarks may be one or combination of words, letters, numerals, drawings, symbols, colours and shapes used packaging of goods as distinguishing feature.

A trademark:

- is used to identify and distinguish the goods/services
- is used to indicate the source
- is a symbol of good will
- guarantees consistency in quality
- makes purchasing decisions easy
- advertises & creates an image of a brand

Trademark is governed by Trademark Act. Trademark is said to be infringed if used in the course of trade or is printed and published in an advertisement.

The main purpose of a trademark is to enable consumers to identify / distinguish a product of a particular company from other similar products provided by competitors.

Industrial Designs

An industrial design is an intellectual property right that protects the visual design of objects that are not purely utilitarian or useful.

Colourful handicrafts, exquisite piece of jewellery, unique looking handbag, design on clothings, etc.

Geographical indication

Geographical indication or GI is an indication that is used to identify agricultural, natural or manufactured goods originating from a particular region. It has special quality or characteristics that are unique to that particular geographical region.

Some of the examples of Geographical Indications in India include Basmati Rice, Darjeeling Tea, Kancheepuram silk saree, Alphonso Mango, Nagpur Orange, Kolhapuri Chappal, Bikaneri Bhujia, etc.

Semiconductor IC

Semiconductor IC is a product having transistors and other circuitry elements formed on a semiconductor material, which is designed to perform an electronic circuitry function. IPR is governed by The Semiconductor Integrated Circuits (IC) Layout Design Act 2000.

Trade Secret

A trade secret refers to data or information relating to the business which is not generally known to the public and which the owner reasonably attempts to keep secret and confidential.

Trade secrets generally give the business a competitive edge over their rivals. Almost any type of data, processes or information can be referred to as trade secrets so long as it is intended to be and kept a secret, and involves an economic interest of the owner.

The terms, “confidential information” and “trade secret” are used alternatively and are usually confused with each other. Confidential information is the information which a company would like to keep secret; it may or may not be essential for the business. In other words, all trade secrets are confidential in nature but all confidential information cannot be termed as trade secret.

For any information to be considered as a trade secret:

- It must not be generally known or readily accessible by people who normally deal with such type of information.
- It must have commercial value as a secret
- The lawful owner must take reasonable steps to keep it a secret

There may or may not be any defined legal framework to protect ‘trade secret’ but misappropriation may be an offence.

Plant Variety and Farmer’s Rights

The Protection of Plant Variety and Farmer’s Rights Act, 2001 provides for the establishment of an effective system for protection of plant varieties, the rights of farmers and plant breeders and to encourage the development of new varieties of plants. Using these rights, the farmers can grow new types of plants, crops which in turn improve the country’s economy.

Registration of a plant variety gives protection only in India and confers upon the rights holder, its successor, agent, or licensee the exclusive right to produce, sell, market, distribute, import, or export the variety.

Traditional Knowledge

Traditional knowledge is knowledge, know-how, skills and practices that are developed, sustained and passed on from generation to generation within a community. Traditional knowledge also encompasses the wisdom, knowledge, and teachings of these communities. In many cases, traditional knowledge has been orally passed for generations from person to person. Some forms of traditional knowledge are expressed through stories, legends, folklore, rituals, songs, and even laws.

Traditional knowledge can be found in a wide variety of contexts, including: agriculture, technology, medicine, wellness, etc. However, traditional knowledge or knowledge that has ancient roots is often oral and it is not protected by conventional intellectual property systems.